

Prevention of Sexual Harassment Policy - POSH

Document name	Prevention of Sexual Harassment Policy - POSH
Version	2.0
Owner	Deputy Manager- HR
Reviewer	Sr. Manager - HR
Approver	

Draft

Table of Contents

1.0 Policy Purpose 3
2.0 Scope 3
3.0 Important Definition 4
4.0 Internal Complaints Committee (ICC) 5
5.0 If You Are Being Harassed 6
6.0 Redressal Process 6
7.0 Enquiry Process 8
8.0 Appeal 9
9.0 Miscellaneous 9
10.0 Penal Consequences of Sexual Harassment 10
11.0 Duties of Employer 10
12.0 Duties of ICC 11
13.0 Amendments 12
Annexure - A 13
The Enquiry Process & Associated Timelines 14

Draft

1.0 Purpose

Aithent Technologies Pvt Ltd "Organization" is committed to providing equal opportunity and a harassment-free workplace notwithstanding race, caste, religion, colour, ancestry, marital status, gender, sexual orientation, age, nationality, ethnic origin, or disability. We also believe that all employees of the Company have the right to be treated with utmost respect and dignity.

Organization firmly believes that sexual harassment at the workplace or arising out of employment is a very serious offense and therefore punishable.

At Aithent, all employees are expected to uphold the highest standards of ethical conduct at the workplace and in all their interactions with business stakeholders. This means that employees have a responsibility to:

- Treat each other with dignity and respect
- Follow the letter and spirit of the law.
- Refrain from any unwelcome behaviour that has sexual connotation (of sexual nature)
- Refrain from creating a hostile atmosphere at workplace via sexual harassment.
- Report sexual harassment experienced and/or witnessed to appropriate authorities and abide by the complaint handling procedure of the company.

Thus, in order to create a safe and conducive work environment, this Policy has been framed, in line with the provisions of the "Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013" of India and existing rules framed thereunder namely the "Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013" to prohibit and prevent the commission of acts of sexual harassment at workplace and to provide the procedure for the redressal of complaints pertaining to sexual harassment.

2.0 Scope

- This Policy extends to all employees (both male and female) including trainees of the Company at all levels and is deemed to be incorporated in the service conditions of all employees and comes into force with immediate effect.
- The policy is applicable to all the allegations of sexual harassment by an employee against another employee.
- It shall also be applicable in respect of all allegations of sexual harassment made by a third party/contractor/service provider/customer etc. against an employee or made by an employee against a third party/contractor/service provider/customer etc. if the

Draft

sexual harassment is alleged to have taken place within or outside the premises of the Company.

3.0 Important Definition

- Employee
  Employee means any person on the rolls of the Company and those on deputation, contract, temporary, part-time, training, internship, or working as consultants.

- Workplace
  Workplace means all the establishments of the Company in India, including those premises where the Company's employees are required to perform work or visit for the Company's Business.

  The workplace also includes any place visited by the employee arising out of or during employment including transportation provided by the Company for undertaking such journey.

- Sexual Harassment
  Sexual Harassment would mean and include any of the following acts but not limited to:

    - Unwelcome sexual advances involving verbal, non-verbal or physical conduct, implicit or explicit.
    - Physical contact and advances of sexual nature/ connotation/ overtures in the work area and work-related area
    - Demand or request for sexual favours
    - Policy is independent of Gender.
    - Sexually coloured remarks, including but not limited to vulgar/indecent jokes, letters, phone calls, text messages, emails, gestures, etc.
    - Showing pornography or the likes
    - Any other unwelcome physical, verbal or non-verbal conduct of sexual nature
    - Physical contact and advances such as touching, stalking, sounds which have explicit and/or implicit sexual connotation/overtures, molestation.
    - Display of pictures, signs, etc. of sexual nature/ connotation/ overtures in the work area and work-related area
    - Verbal or non-verbal communication which offends the individual's sensibilities and affects her/his performance and has sexual connotation/overture/nature.
    - Eve teasing, innuendos, and taunts of sexual nature/ connotation/ overtures in the work area and work-related area, physical confinement against one's will, and likely to intrude upon one's privacy.

The following circumstances, among other circumstances, if it occurs or is present in relation to or connected with any act or behaviour of sexual harassment may amount to sexual harassment:

Draft

- Implied or explicit promise of preferential treatment in employment
- Implied or explicit threat of detrimental treatment in employment
- Implied or explicit threat about the present or future employment status
- Interference with work or creating an intimidating or offensive or hostile work environment.
- Humiliating treatment likely to affect health or safety.

- Aggrieved Individual

An Aggrieved Individual, in relation to a workplace, is a person, of any age, whether an Employee or not, who alleges to have been subjected to any act of Sexual Harassment.

- Complainant

A complainant is any aggrieved individual or if any aggrieved individual is unable to make a complaint on account of his/her physical or mental incapacity or death or otherwise, any person who makes a complaint alleging Sexual Harassment under this Policy.

- Accused / Respondent

An Accused / Respondent means the person against whom the complaint has been filed.

4.0 Internal Complaints Committee (ICC)

- To give effect to the objects of this Policy, the management of the Company has constituted "Internal Complaint Committee" (hereafter referred as Committee or ICC) to prevent sexual harassment and to receive and effectively deal with complaints pertaining to the same.
- The ICC shall consist of -

  (i) a Presiding Officer who shall be a woman employed at a senior level at the workplace amongst employees,

  (ii) not less than two Members from amongst employees.

  (iii) one member from amongst non-government organization or association committed to the cause of woman or person familiar with the issues related to the sexual harassment. Provided that at least one-half of the total members so nominated shall be women.

Draft

- Details of the members of the ICC constituted by the Company for its Corporate Office at Gurugram & Chennai are enclosed in Annexure-A of this Policy.
- A quorum of at least 3 members is required to be present for the proceedings to take place. The quorum must include the Presiding Officer, at least two members (one of whom must be female).
- The Presiding Officer will be a female member and every member of the Committee shall hold office for such period not exceeding 3 years from the date of their nomination by the employer.
- Where the Presiding Officer or any Member of the Internal Committee:
    i. Contravenes the provisions of confidentiality; or
    ii. Has been convicted for an offense or an inquiry into an offense under any law for the time being in force is pending against him/her; or
    iii. He/she has been found guilty in any disciplinary proceedings or a disciplinary proceeding is pending against him/her; or
    iv. Has so abused his/her position as to render his/her continuance in office prejudicial to the public interest, such Presiding Officer or Member shall be removed from the Committee and the vacancy so created or any casual vacancy shall be filled by fresh nomination in accordance with the provisions of this policy.

Group CISO may be consulted by the ICC from time to time. Such consultation is purely discretionary.

5.0 If You Are Being Harassed

- Tell the accused that his / her behaviour is unwelcome and ask him/her to stop.
- Keep a record of incidents (dates, times, locations, possible witnesses, what happened, your response). It is not mandatory to have a record of events to file a complaint, but a record can strengthen your case and help you remember the details over time in case the complaint is not filed immediately.
- If, after asking the accused to stop his/her behaviour, the harassment continues, report the abuse to the Internal Complaints Committee formed for this purpose.
- File a complaint as soon as possible.

6.0 Redressal Process

- Any employee who feels and is being sexually harassed directly or indirectly may submit a complaint of the alleged incident to any member of the Committee in writing with his/her signature within three (3) months of the occurrence of the incident.

Draft

- Where the aggrieved employee is unable to make a complaint on account of physical or mental incapacity or for any other reason, her relative, co-worker, or any prescribed person who has the knowledge of the incident can file a complaint, with the written consent of the aggrieved employee.
- Where the aggrieved person is dead, a complaint may be filed by any person who has the knowledge of the incident, with the written consent of her legal heirs.
- The Committee shall send a copy of the complaint to the respondent within seven (7) working days from the date of complaint received from the aggrieved employee and the respondent shall file his reply to the complaint along with his list of documents, name, and address of witness(s), within a period of ten (10) working days from the date of receipt of a complaint from the Committee.
- The Committee shall hold a meeting with the complainant within seven (7) working days of the receipt of the complaint, except for valid /unavoidable /compelling reasons.
- At the first meeting, the Committee members shall hear the complainant and record her/his allegations. The complainant can also submit any corroborative material with documentary proof, oral or written material, etc. to substantiate his/her complaint.
- The Committee before initiating an enquiry into the complaint of sexual harassment, on the request of aggrieved employee, take steps to settle the matter between the aggrieved employee and the respondent through conciliation.
- The Committee will maintain a register to endorse the complaint received by it and keep the contents confidential, if it is so desired, except to use the same for discreet investigation. The complainant will not be retaliated against for making the complaint.
- Thereafter, the person against whom the complaint is made may be called for a deposition before the Committee and an opportunity will be given to him/her to give an explanation, whereafter an “enquiry” shall be conducted and concluded.

  During the pendency of an inquiry, on a written request made by the aggrieved employee, the Internal Committee may recommend to the employer to:

  - Transfer the aggrieved employee or the respondent to any other workplace; or
  - Grant such other relief to the aggrieved employee

  The leave granted to the aggrieved employee under this section shall be in addition to the leave he/she would be otherwise entitled.

- In the event the complaint does not fall under the purview of sexual harassment, or the complaint does not amount to an offence of sexual harassment, the same would be dropped after recording the reasons thereof and the complainant informed accordingly.
- In case the complaint is found to be false, the complainant shall, if deemed fit, be liable for appropriate disciplinary action by the Management of the Company. This is without

Draft

prejudice to the independent legal remedy available to the concerned affected employee.

7.0 Enquiry Process

- The entire enquiry process shall be completed within a period of ninety (90) days.
- The Committee shall make an enquiry into the complaint in accordance with the principles of natural justice.
- The Committee shall have the right to terminate the enquiry proceedings if the Complainant fails to present herself/himself for three (3) consecutive hearings convened by the Presiding Officer, without sufficient reasons.

  Similarly, the Committee shall have the right to terminate the enquiry proceedings by giving an ex-party decision on the complaint if the Respondent fails to present himself or herself for three (3) consecutive hearings convened by the Presiding Officer.

  Provided that such terminations or ex-party order may not be passed without giving notice, in writing, fifteen (15) days in advance to the party concerned.

- Either party shall not be allowed to bring in any legal practitioner to represent them in their case at any stage of the proceedings before the Committee.
- The Presiding Officer may nominate one person from the Committee to carry out a confidential investigation.
- If the complainant or the person against whom the complaint is made desires any witness/es to be called, he/she shall communicate in writing to the Committee the names of witness/es whom he/she proposes to call.
- If the complainant desires to tender any documents by way of evidence before the Committee, he/she shall supply original copies of such documents. Similarly, if the person against whom the complaint is made desires to tender any documents in evidence before the Committee, he/she shall supply original copies of such documents. Both shall affix his/her signature on the respective documents to certify these to be the original copies.
- The Committee shall call upon all witnesses, as mentioned by both the parties.
- The Committee shall provide every reasonable opportunity to the complainant and to the person against whom the complaint is made, for putting forward and defending their respective case.
- The person against whom a complaint has been received by the Committee will neither resign nor will be relieved by the Company till the completion of enquiry.
- The Committee shall complete the enquiry within a reasonable period but not beyond 90 days from the date of receipt of the complaint. The Committee shall provide a report of its findings within a period of ten (10) days from the date of completion of enquiry to the Management of the Company and all concerned parties.

Draft

- The Management of the Company will direct appropriate action in accordance with the findings of the Committee within sixty (60) days of receipt of the findings of the Committee.
- The Committee shall be governed by such rules as may be framed by law.
- The proceedings of the investigation must have the highest level of confidentiality and the members of the Committee shall take appropriate measures to ensure that the proceedings or the deliberation therein or their findings are not disclosed until and unless the findings are accepted by the Management of the Company.
- If the Committee arrives at a conclusion that allegation against the accused person is false or malicious or the aggrieved person has produced any forged or misleading document, it may recommend to the Management of the Company to take action against the person who has made the Complaint in accordance with this Policy.

Further, if the Committee after the conclusion of the enquiry finds that during enquiry any witness has given any false evidence or produced any forged or misleading document it may recommend to the Management of the Company to take appropriate action against the said witness.

8.0 Appeal

Any person aggrieved from the recommendations of ICC or non-implementation of such recommendations by the management may prefer an appeal to the court or tribunal within 90 days from the date of recommendations.

9.0 Miscellaneous

- The Committee may recommend action to the Head HR of the Company, which may include dismissal/termination or any of the other appropriate disciplinary action.
- The Management of the Company shall provide all necessary assistance for the purpose of ensuring full, effective, and speedy implementation of this Policy.
- Where sexual harassment occurs as a result of an act or omission by any third party or outsider, the Company shall take all steps necessary and reasonable to assist the affected person in terms of support and preventive action depending upon the facts of each case.
- The Committee shall analyse and put-up report on all complaints of this nature at the end of the year for submission to the CEO.
- In case the Committee finds the degree of offence coverable under the Indian Penal Code, then this fact shall be mentioned in its report and appropriate action shall be initiated by the Management, for making a Police Complaint.

Draft

10.0 Penal Consequences of Sexual Harassment

- In addition to action that management may initiate under the Sexual Harassment of Woman at Workplace (Prevention, Prohibition & Redressal) Act 2013, the following liability may arise under the Indian Penal Code (IPC).
- Section 354A of the IPC, Sexual Harassment has been made a 'cognizable offence' i.e. a person charged with Sexual Harassment may be arrested without a warrant.
- As per Section 354A of IPC, a man committing any of the following acts:
    - Physical contact and advances involving unwelcome and explicit sexual overtures or
    - A demand or request for sexual favours or
    - Showing pornography against the will of a woman
    - Making sexually coloured remarks shall be guilty of the offence of sexual harassment.
- Any man who commits the offence specified in clause (i) or clause (ii) or clause (iii) above, shall be punishable with rigorous imprisonment for a term which may extend to three years or with fine or with both.
- In addition, acts of Sexual Harassment may also constitute other offences under IPC including Section 354 (assault or criminal force to woman with the intent to outrage her modesty), Section 354C (Voyeurism), Section 354D (Stalking), Section 375 and 376 (Rape) and Section 509 (word, gesture or act intended to insult the modesty of a woman) of the IPC.

11.0 Duties of Employer

- Towards the employees:

➢ Provide a safe working environment
➢ Display order constituting the ICC in a conspicuous place(s) at the workplace
➢ Create and communicate a detailed policy on prevention and redressal of Sexual harassment complaints. Policy document shall:

- Prohibit unwelcome behaviour that constitutes workplace sexual harassment
- Champion prevention of workplace sexual harassment through orientation, awareness and sensitization sessions
- Provide a detailed framework for redress
- Organize workshops and awareness programs at regular intervals
- Create discussion forums or women groups within the organization
- Treat sexual harassment as misconduct under the service rules and initiate action for such misconduct
- Provide assistance to the employees to file a complaint under the Indian Penal Code, if she wishes too

Draft

- Initiate action under the Indian Penal Code or other law as required

- Towards ICC

- Organize orientation program for the ICC
- Provide necessary facilities to ICC to deal with the complaint/inquiry
- Assist in securing the attendance of respondents and witnesses before ICC
- Make required information available to ICC

- Towards Government

- Reporting to include – number of cases filed, disposal of cases under the Act, intimate the cases to the district officer
- Furnish information requested by the Government
- Support inspection of information and records as required

12.0 Duties of ICC

- Gender sensitization and Orientation:

- To work towards creating an atmosphere promoting equality and non-discrimination.
- To promote and facilitate measures to create a work and study environment that is free of sexual harassment.

- Remedial

- To receive and take cognizance of complaints made about sexual harassment of women at the workplace.
- To conduct enquiries into these complaints, place findings before the concerned disciplinary authority, and recommend penalties against the harasser in accordance with the rules and procedures laid down.
- To ensure the safety of the complainant and witnesses during the pendency of the inquiry and till the final determination of the complaint, by advising the concerned authorities to issue warnings, suspension, or any other order, if the harasser harasses or intimidates the complainant or witnesses.

Draft

- The Committee shall have the power to summon any official papers or documents pertaining to the complaint under inquiry.

- Documentation

- The Committee shall keep complete and accurate documentation of the complaint, its investigation, and the resolution thereof. The incident would be documented with the full report of the Committee.

13.0 Amendments

The Policy may be reviewed and amended from time to time and with any change in the existing law.

Draft

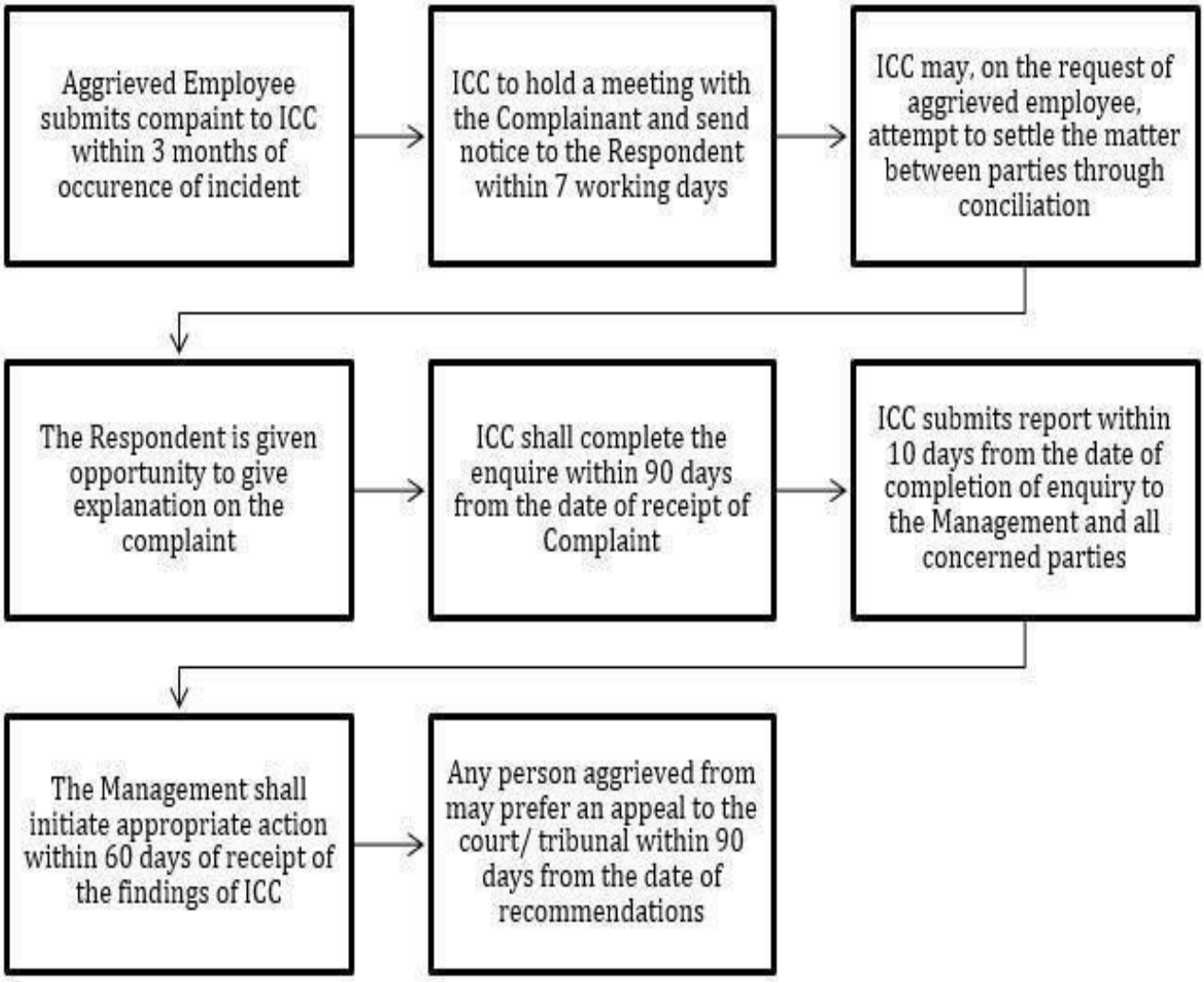
Annexure - A

Particulars of the Members of Internal Complaints Committee (ICC)

A. _____

Sl. No.	Name	Designation
1		
2		
3		
4		
5		

Draft


Aggrieved Employee submits compaint to ICC within 3 months of occurence of incident
ICC to hold a meeting with the Complainant and send notice to the Respondent within 7 working days
ICC may, on the request of aggrieved employee, attempt to settle the matter between parties through conciliation
The Respondent is given opportunity to give explanation on the complaint
ICC shall complete the enquire within 90 days from the date of receipt of Complaint
ICC submits report within 10 days from the date of completion of enquiry to the Management and all concerned parties
The Management shall initiate appropriate action within 60 days of receipt of the findings of ICC
Any person aggrieved from may prefer an appeal to the court/ tribunal within 90 days from the date of recommendations